

MUTUAL NON-DISCLOSURE AND PROPRIETARY INFORMATION AGREEMENT

This Mutual Non-Disclosure Agreement ("Agreement") is executed as of March 10, 2025, between Apex Digital Solutions Inc. ("Company") and Alex Rivera ("Contractor").

1. PURPOSE

Company and Contractor intend to engage in discussions regarding freelance full-stack engineering and machine learning consulting services ("Permitted Purpose").

2. CONFIDENTIAL INFORMATION DEFINITION

"Confidential Information" encompasses all technical, business, financial, software architecture, client lists, and algorithmic data disclosed by either party, whether in oral, written, or electronic form.

3. TERM OF CONFIDENTIALITY OBLIGATIONS

3.1. Each receiving party's obligations to safeguard and refrain from disclosing Confidential Information shall commence upon receipt and expire exactly two (2) years after the date of disclosure or upon mutual termination of this Agreement, whichever occurs first.

4. PERMITTED DISCLOSURE

A receiving party may disclose Confidential Information solely to its employees, subcontractors, or professional legal advisors who have an absolute need to know for the Permitted Purpose and who are bound by non-disclosure terms no less restrictive than this Agreement.

5. INTELLECTUAL PROPERTY & INDEMNIFICATION

5.1. Contractor agrees to defend, indemnify, and hold Company harmless against any and all claims, demands, liabilities, costs, or damages including attorney fees arising directly or indirectly out of any work product, independent of whether actual infringement, willful misconduct, or negligence occurred.

6. SURVIVAL AND PERPETUAL NON-DISCLOSURE

6.1. Notwithstanding any other provision herein, Recipient's non-disclosure obligations and prohibitions against use of any Proprietary Information, source code, trade secrets, or client workflows shall survive termination of this Agreement in perpetuity and shall never expire under any circumstance until such information enters the public domain without fault of Recipient.

7. GOVERNING LAW AND ARBITRATION

7.1. This Agreement shall be governed by English Law. Any controversy, claim, or breach shall be settled by binding arbitration in London, England. Contractor waives any objection based on inconvenient forum, and the non-prevailing party shall pay 100% of the prevailing party's legal costs.